

25STCV24609 25STCV24609

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV24609 Hearing Date: July 22, 2026 Dept: 512

HEARING DATE: Weds., July 22, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Scott

v. Volkswagen Group of America, COMP.

FILED: 08-20-25

Inc., et al.

CASE NUMBER: 25STCV24609

NOTICE: OK

PROCEEDINGS: MOTION

FOR JUDGMENT ON THE PLEADINGS

MOVING PARTY: Defendants Volkswagen Group of America, Inc.
and Walter Timmons Enterprises Inc.

RESP. PARTY: Plaintiff Joanne S. Scott

MOTION FOR JUDGMENT ON THE PLEADINGS

(Code Civ. Proc., § 438, et
seq.)

TENTATIVE RULING:

Defendants

Volkswagen Group of America, Inc. and Walter Timmons Enterprises Inc.'s Motion for Judgment on the Pleadings is GRANTED WITH 30 DAYS' LEAVE TO AMEND as to the fifth and sixth causes of action in the Complaint.

Plaintiff is
to file and serve a First Amended Complaint on Defendants within 30 days of notice of this Court's order.

Moving parties are ordered
to give notice of ruling.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 8, 2026 ☐
Late ☐ None

REPLY: Filed
on July 15, 2026 ☐
Late ☐ None

ANALYSIS:

I.
Background

On August 20, 2025, Plaintiff Joanne S. Scott ("Plaintiff") filed the instant action for Violation of Statutory Obligations against Defendants Volkswagen Group of America, Inc. ("VW Group") and Timmons Volkswagen of Long Beach ("Timmons") and Does 1-10, alleging causes of action for Violation of Civil Code section 1793.2, subdivision (d);

Violation of Civil Code section 1793.2, subdivision (b); Violation of Civil Code section 1793.2, subdivision (a)(3); Breach of the Implied Warranty of Merchantability; Negligent Repair; and Fraudulent Inducement – Concealment.

On December 1, 2025, Defendants filed Answers.

On June 18, 2026, Defendants filed the instant Motion for Judgment on the Pleadings (the “Motion”).

On July 8, 2026, Plaintiff filed an Opposition.

On July 15, 2026, Defendants filed a Reply.

II. Legal Standard

A plaintiff may move for judgment on the pleadings if “the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc., § 438.)

The standard for ruling on a motion for judgment on the pleadings is “ ‘essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law.’ ” (Bezirdjian v. O’Reilly (2010) 183 Cal.App.4th 316, 321, citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216; Barker v. Hull (1987) 191 Cal.App.3d 221, 224; Code Civ. Proc., § 438.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special

demurrers.

A motion for

judgment on the pleadings may “may be made only after one of the following conditions has occurred: (1) If the moving party is a plaintiff, and the defendant has already filed his or her answer to the complaint and the time for the plaintiff to demur to the answer has expired. (2) If the moving party is a defendant, and the defendant has already filed his or her answer to the complaint and the time for the defendant to demur to the complaint has expired.” (Code Civ. Proc., § 438, subd. (f).)

Where a demurrer is

sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

III.

Discussion

Defendants move

for judgment on the pleadings as to the fifth and sixth causes of action in the Complaint for failure to state sufficient facts to constitute causes of action. (Motion.)

In Opposition, Plaintiff

concedes the Complaint’s sixth cause of action for Fraudulent Inducement fails to state sufficient facts to constitute a cause of action. (See Opp., p. 1.) However, Plaintiff opposes the Motion’s contentions regarding the fifth cause of action and urges the Court to find the Complaint states sufficient facts to constitute a Negligent Repair cause of action. (Opp., pp. 2-4.) Plaintiff requests leave to amend should the Court find any merit to the Motion. (Opp., p. 4.)

In Reply, Defendants

state the Opposition misstates and mischaracterizes the law regarding Negligent Repair, and the Complaint fails to state sufficient facts to demonstrate this cause of action because “there is nothing pled to establish how Defendant owed Plaintiff a duty, how Defendant breached that duty, or how Plaintiff was injured. Plaintiff fails to establish any causal nexus between the scantily-pled alleged conduct by Defendant and his alleged damages.” (Reply, p. 2.) Further, Defendants emphasize that the Economic Loss Rule bars this cause of action in Plaintiff’s Complaint as Plaintiff has not alleged any injuries to person or property. (Reply, pp. 3-4.)

Meet
and Confer

Before filing a motion for judgment on the pleadings, “the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings.” (Code Civ. Proc., § 439, subd. (a).)

Here, a meet and confer declaration accompanies the Motion. (Motion, Pratt Decl.) However, the declaration fails to demonstrate the parties met and conferred in person, by telephone, or by video conference prior to the filing of the instant Motion. (Code Civ. Proc., § 439, subd. (a).)

Thus, the Court finds the meet and confer requirement is not satisfied. While the Court may not deny a motion for judgment on the pleadings for failure to adequately meet and confer (Code Civ. Proc., § 439 (a)(4)), the Court cautions the parties to abide by their statutory obligations in the future.

Fifth Cause
of Action – Negligent Repair

“The elements of a negligence cause of action are duty, breach, causation and damages.” (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.)

“[T]he economic loss doctrine applies when the parties have entered into a contract; the plaintiff sues for tort damages, alleging the defendant failed to perform as the contract requires; and negligently caused economic losses flowing from the breach. In such a case, the plaintiffs are generally limited to recovery of those economic damages and cannot seek to expand their remedies beyond those available in contract. The doctrine does not apply if the defendant's breach caused physical damage or personal injury beyond the economic losses caused by the contractual breach and the defendant violated a duty flowing, not from the contract, but from a separate, legally recognized tort obligation. A case in which the plaintiff sues a contractual party for fraud based on conduct committed during the course of a contractual relationship falls outside the economic loss doctrine.

(Rattagan

v. Uber Techs., Inc. (2024) 17 Cal.5th 1, 44; see Mills v. Forestex Co. (2003) 108 Cal.App.4th 625, 635, fn. 3 [“Purely economic losses, e.g., the cost to repair or replace the defective product, are recoverable only under contract or warranty law”].) Further, “the economic loss rule is not a defense to a cause of action. Rather, the existence of damages other than purely economic loss is an element of a plaintiff's common law cause of action.” (Greystone Homes, Inc. v. Midtec, Inc. (2008) 168 Cal.App.4th 1194, 1215, emphasis in original.)

Here,

the Complaint alleges the parties entered into a warranty contract; Plaintiff is suing, in part, for tort damages and alleging Timmons failed to perform as the contract required by failing to store, prepare, and repair the subject vehicle in accordance with industry standards; and Timmons negligently caused economic losses flowing from the breach of the parties' contract; however, the Complaint does not allege any physical damage or personal injury beyond the economic losses. (See Compl., ¶¶ 7-23, 46-50; Rattagan, supra, 17 Cal.5th at p. 44.) Further, the Complaint does not allege facts explaining how Timmons failed to properly store, prepare, and repair the subject vehicle. (See e.g., Compl., pp. 7-8, ¶¶ 46-50.)

Thus,

the Court finds the Complaint fails to allege sufficient facts to state a Negligent Repair cause of action.

The

Motion is GRANTED as to the fifth cause of action.

Sixth Cause
of Action – Fraudulent Inducement

The parties
stipulate that there are insufficient facts in the Complaint to state a
Fraudulent Inducement cause of action. (See Opp. p. 1.)

Pursuant to the
parties' stipulation (Motion, Opp., p. 1, Reply), the Court GRANTS the Motion
as to the sixth cause of action.

Leave to
Amend

Given this is
the first challenge to the Complaint and the Opposition requests leave to amend
globally as to the Motion's allegations (Opp., p. 4), the Court finds granting
leave to amend as to both the fifth and sixth cause of action is warranted at
this time. (See Goodman, supra, 18 Cal.3d at p. 348.)

Thus, the Motion
is GRANTED WITH LEAVE TO AMEND.

IV.
Conclusion
& Order

For the
foregoing reasons, Defendants Volkswagen Group of America, Inc. and Walter
Timmons Enterprises Inc.'s Motion for Judgment on the Pleadings is GRANTED WITH
30 DAYS' LEAVE TO AMEND as to the fifth and sixth causes of action in the
Complaint.

Plaintiff is
to file and serve a First Amended Complaint on Defendants within 30 days of
notice of this Court's order.

Moving parties are ordered

to give notice of ruling.